

STATE OF NEW YORK

7544--A

2025-2026 Regular Sessions

IN SENATE

April 22, 2025

Introduced by Sens. BROUK, CLEARE, MYRIE, RAMOS, SALAZAR, SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Women's Issues -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to establishing the cesarean births review board

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public health law is amended by adding a new section
2 2500-n to read as follows:

3 § 2500-n. Cesarean births review board. 1. There is hereby established
4 in the department the cesarean births review board, hereinafter referred
5 to as the "board". The members of the board shall be comprised of
6 experts in the fields of maternal mortality, maternal health, and public
7 health. The appointment of any member of the board shall be based in
8 part on the objective of ensuring that the board includes experts who
9 are representative of the racial, ethnic, and socioeconomic diversity of
10 the birthing people of the state.

11 2. The board should be composed of fourteen members which shall
12 include eight members to be appointed by the governor as follows: two
13 licensed midwives in the state; two licensed and registered nurses
14 specializing in obstetrics in the state; two physicians specializing in
15 obstetrics and gynecology licensed and registered to practice in the
16 state; and two representatives of a women's maternal health organization
17 that operates in the state; and six additional members, two appointed on
18 the recommendation of the temporary president of the senate, two
19 appointed on the recommendation of the speaker of the assembly, one
20 appointed on the recommendation of the minority leader of the senate,
21 and one appointed on the recommendation of the minority leader of the
22 assembly. The governor shall designate the commissioner, or their

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 designee, as chair of the board. Members of the board shall receive no
2 compensation for their services but may be reimbursed for necessary and
3 actual expenses incurred in the performance of their duties hereunder.

4 3. The board shall undertake a review of cesarean births at hospitals
5 in the state. The board shall issue a final report and make recommenda-
6 tions to reduce the rate of cesarean births in the state. The board
7 shall consider factors including, but not limited to:

8 (a) the primary and repeat cesarean birth rates among hospitals in the
9 state;

10 (b) the hospitals in the state that allow or encourage vaginal births
11 after cesarean births;

12 (c) the rate of vaginal births after cesarean births among hospitals
13 in the state;

14 (d) the rate of vaginal births after cesarean births that were offered
15 by hospitals in the state but declined by the birthing person;

16 (e) the rate of vaginal births after cesarean births that were
17 attempted but failed among hospitals in the state;

18 (f) the time of day unplanned cesarean births occur in hospitals, and
19 whether such correlates with the rate of cesarean births in a hospital;

20 (g) the number of birthing people who elect to have midwives attend
21 labor and delivery in hospitals in the state;

22 (h) the frequency of midwifery care during labor in hospitals across
23 the state and what impact, if any, this has on the rate of cesarean
24 births; and

25 (i) the number of birthing people who were informed by their health
26 care provider about the potential risks, benefits, and alternatives
27 related to cesarean births before labor.

28 4. The board may request and shall receive upon request from any
29 department, division, board, bureau, commission, local health depart-
30 ments or any other agency in the state or political subdivision thereof
31 or any public authority, such information, including but not limited to
32 medical records, birth records, and any other information that will help
33 the department under this section to properly carry out its functions,
34 powers and duties.

35 5. The board shall, within eighteen months of convening, issue a final
36 report on its findings and recommendations to the governor, speaker of
37 the assembly, and temporary president of the senate. The board shall
38 post a copy of such report on the department's website.

39 6. The board shall keep confidential any information collected or
40 received under this section that includes personal identifying informa-
41 tion of the birthing person, health care practitioner or practitioners
42 or anyone else individually named in such information, as well as the
43 hospital or facility that treated the birthing person, and any other
44 information such as geographic location that may inadvertently identify
45 the birthing person, practitioner or facility, and shall use the infor-
46 mation provided or received under this section solely for the purposes
47 of improvement of the quality of maternal health care.

48 § 2. This act shall take effect immediately.